

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:			
Trf from:			
Reviewer:	Initials	Date	
Agent:		/	/
Chief:		/	/

To be completed by City/County Clerk

License

Fees

Annual Fee: \$ 1500.00

Prorated Fee: \$ _____

Transfer Fee: \$ _____

Publishing Fee: \$ 1000.00Publishing Fee Direct Billed to Applicant: ☐Local License #: R 398109Date filed with clerk: 1/31/22

Advertising Dates: (2 Weeks)

3/3/22 & 4/7/22Hearing Date: 4/11/22
 License Term: 1 Month 1 Day 1 Year Through 3 Month 31 Day 22 Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**
Applicant: Ace's Range LLCTrade/Business Name (dba): Ace's Range LLCBuilding to be licensed/Building Address: 1505 Pioneer Ave

Number & Street

Cheyenne

City

WY

State

82001 Laramie

Zip

County

Local Mailing Address: 7449 Keystone Dr

Number & Street or P.O. Box

Cheyenne

City

WY

State

82009

Zip

Local Business Telephone Number: (307) 631-7181 Fax Number: ()Business E-Mail Address: Acesrange@gmail.com**FILING FOR**☒ NEW LICENSE☐ TRANSFER OF LOCATION☐ TRANSFER OWNERSHIP

FORMERLY HELD BY: _____

FILING IN (CHOOSE ONLY ONE)☒ CITY OF: Cheyenne☐ COUNTY OF: _____☐ ASSIGNMENT LETTER ATTACHED**FILING AS (CHOOSE ONLY ONE)**☐ INDIVIDUAL☐ PARTNERSHIP☐ LP/LLP☒ LLC☐ CORPORATION☐ LTD PARTNERSHIP☐ ORGANIZATION☐ OTHER _____**TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)****RETAIL LIQUOR LICENSE**☒ ON-PREMISE ONLY (BAR)☐ OFF-PREMISE ONLY (PACKAGE STORE)☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)
☐ RESTAURANT LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
☐ BAR AND GRILL
LIMITED RETAIL (CLUB)
☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB
☐ MICROBREWERY☐ WINERY☐ DISTILLERY SATELLITE☐ WINERY SATELLITE☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT**SPECIAL DESIGNATIONS**☐ CONVENTION FACILITY☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM☐ GOLF CLUB☐ GUEST RANCH☐ RESORTTo Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**☒ FULL TIME (e.g. Jan through Dec)☐ SEASONAL/PART-TIME☐ NON-OPERATIONAL/PARKED

(specify months of operation)

from Jan to Dec

DAYS OF WEEK (e.g. Mon through Sat)

from Mon to Sun

HOURS OF OPERATION (e.g. 10a - 2a)

from 10am to 9pm

ALL APPLICANTS MUST COMPLETE QUESTIONS 1-4**1. BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)(a) **OWN** the licensed building?☒ YES (own)(b) **LEASE** the licensed building? (Lease must be through the term of the liquor license)☐ YES (lease)

If Yes, please submit a copy of the lease and indicate:

(i) When the lease expires, located on page _____ paragraph _____ of lease.

(ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page _____ paragraph _____ of lease.(MUST contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES.**)**2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)**☐ YES ☒ NO**3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403**

(a) Hold any interest in the license applied for?

☐ YES ☒ NO

(b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business?

☐ YES ☒ NO

(c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs?

☐ YES ☒ NO(d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:**4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)**☐ YES ☒ NO

If "YES", explain: _____

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☐ YES ☐ NO**6. RESORT LICENSE:**

Does the resort complex:

(a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i)

☐ YES ☐ NO

(b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii)

☐ YES ☐ NO

(c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii)

☐ YES ☐ NO

(d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv)

☐ YES ☐ NO

(e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)

☐ YES ☐ NO

1. If Yes, have you submitted a copy of the food and beverage contract/lease?

☐ YES ☐ NO**7. MICROBREWERY LICENSE:**

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT☐ BAR AND GRILL☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a)

☐ YES ☐ NO

(Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT☐ BAR AND GRILL☐ MICROBREWERY

000

9. LIMITED RETAIL (CLUB) LICENSE:**FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:**VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:**GOLF CLUBS** W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:**SOCIAL CLUBS** W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
JBrent William Kunz	05/19/88	7449 Keystone Dr. Cheyenne, WY 82009	(307) 631-7181	Organized 4/23/21	51%	YES ☐ NO ☒	YES ☐ NO ☒
April Bummes Kunz	4/1/84	6210 Bummes Road Cheyenne, WY 82009	307-630-0957	Organized 4/23/21	49%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

COUNTY OF Laramie)

) SS.

Signed and sworn to before me on this 26 day of January, 2022 that the facts alleged in the foregoing instrument are true by the following:

- | | | | |
|----|---|--|---------------------------------|
| 1) | <u>JBrent William Kunz</u>
(Signature) | <u>JBrent William Kunz</u>
(Printed Name) | <u>General Manager</u>
Title |
| 2) | _____
(Signature) | _____
(Printed Name) | _____
Title |
| 3) | _____
(Signature) | _____
(Printed Name) | _____
Title |
| 4) | _____
(Signature) | _____
(Printed Name) | _____
Title |
| 5) | _____
(Signature) | _____
(Printed Name) | _____
Title |
| 6) | _____
(Signature) | _____
(Printed Name) | _____
Title |

Witness my hand and official seal:



[Signature]
Signature of Notary Public

My Commission expires January 19, 2025

(2/21)
(SEAL)

My commission expires: January 19, 2025



ACE'S RANGE LLC

1505 Pioneer Ave | (307) 631-7181 | acesrangewy@gmail.com

The Honorable Patrick Collins and Members of the Cheyenne City Council
Municipal Building
Mayor's Office Room 310
2101 O'Neil Avenue
Cheyenne, WY 82001

RE: Application for Retail Liquor License

Honorable Mayor Collins and Members of the Cheyenne City Council,

Ace's Range is a new virtual simulation where popular outdoor activities are done inside with virtual simulators. In our case, we propose utilizing both golfing and shooting state of the art simulators. A similar venue, XGolf, has been open in Fort Collins since 2019 and brings in visitors, sales tax and property tax. Equally important Ace's Range fills the empty warehouse space at 15th Street and Pioneer Avenue with another quality family and adult venue in downtown Cheyenne.

We respectfully request your consideration in granting our business the newly available retail liquor license. It is imperative to this type of business that we have the ability to serve alcohol to the extent only allowed with a full retail license.

We know you will be considering a lot of requests and need as much information as possible to make an informed decision. The most salient topics we would like to briefly touch on in this letter are as follows:

15th Street Renaissance: We share the Governing Body's passion for revitalizing downtown and believe in the importance of the 15th Street Renaissance to that mission. Ace's Range will be located at the corner of 15th Street and Pioneer in a 1940's warehouse that is vacant. We will completely rehabilitate the interior and exterior of the building and create a vibrant property at this important corner. We intend to partner with local businesses in the vicinity as well as local organizations in the city to maximize the use of our simulators and facility.

Economic Activity: Partnerships with downtown businesses, property tax, sales tax, partnerships with golf organizations and shooting clubs. Ace's Range will offer leagues and special events to attract business to the downtown area. Ace's Range, in accordance with Laramie County Health regulations, would like to offer food from downtown restaurants to be delivered by Ace's Range. Ace's Range would also work with the food trucks to create a

schedule to add even more variety to our food options. In addition to these options we will provide some basic food offerings that do not require a commercial kitchen.

Business Plan: If granted this license, we have two phases to our business plan. Phase I is to complete the interior and exterior rehabilitation of the building. We have assembled the professionals necessary to begin work on the building in compliance with regulations and code. Currently Phase I is estimated to be completed by early May.

Phase II is expected to be completed by September 1, 2022. Phase II is when we bring in the simulator equipment and open our doors to our customers! Our building is 7,500 square feet and all age groups will be welcome. We are a family oriented business with a designated serving area that only comprises approximately 320 square feet out of the 7,500. Signage and pony walls will clearly designate our serving area. North of our serving area we will have a space for minors to order non-alcoholic beverages and refreshments.

Ace's Range will maintain a "seasonal area" comprising almost 1,000 square feet in which we will do promotional events. For example, during CFD we may possibly offer the space to a western boutique vendor, or set up a stage for live music. Ace's Range will have large screens for sports television. For the big game, the space could be filled with more seating and tables or it could be reserved for private parties. Our mission of being a family oriented business will be demonstrated in our flexibility of that space. Ace's Range plans to run a fun and engaging promotional campaign using our point of sale system Tee Snap.

Simulator Technology: Ace's Range is truly a new and unique experience for Cheyenne. We will feature six Trackman golf bays and three Smokeless Range shooting simulator bays. Two of the six Trackman bays will be in a privately enclosed area with their own ambiance separate from the rest of the building. Trackman is a state-of-the-art golf simulator featuring premiere courses from all over the world. Trackman is the best medium to teach the game of golf via the numbers provided for every swing. Smokeless Range is a software that utilizes a laser bullet to simulate discharging a firearm over various applications. These applications include fast draw, hostage scenarios, zombies, moving targets and of course standard shooting ranges. Ace's Range will host leagues for golf and shooting.

Competition: Lastly, with any license, we know you have to consider the potential for competition with existing businesses and licensees. There are two other known facilities that have a golf simulator in town. The unique nature of our facility serves a different demand in the community than the other two businesses. We are not aware of anyone doing virtual shooting ranges.

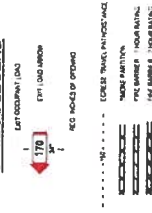
We look forward to discussing our project more with you in the coming weeks.

Sincerely,


J Brent "JB" William Kunz
General Manager
Ace's Range LLC

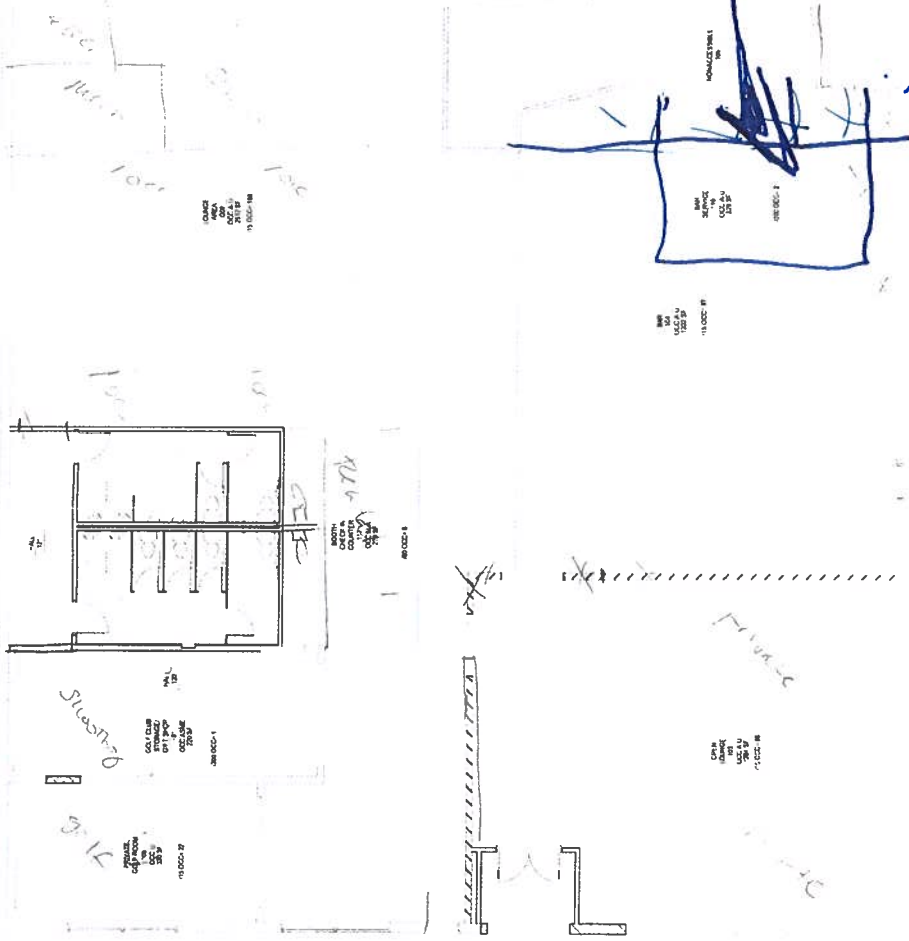
BUILDING STATISTICS		
AREA (GROSS SQUARE FOOTAGE)		
FIRST FLOOR	1,553 SF	
OCUPIED SPACE TOTAL	2,535 SF	
NUMBER OF STORES	1 STORY	
HEIGHT		
CODE SUMMARY		
UNIFORM CODE	INTERNATIONAL BUILDING CODE 2018	
BUILDING	INTERNATIONAL FIRE CODE 2018	
FIRE	INTERNATIONAL MECHANICAL CODE 2018	
PLUMBING	INTERNATIONAL PLUMBING CODE 2018	
ELECTRICAL	NATIONAL ELECTRICAL CODE 2020	
ACCESSIBILITY	2010 ADA STANDARDS FOR ACCESSIBLE DESIGN	
OCCUPANCY GROUP	A-3	
TYPE OF CONSTRUCTION	TYPE I-B	
HEIGHT AND AREA LIMITS		
MINIMUM ALLOWED HEIGHT	MINIMUM ALLOWED HEIGHT	
MAXIMUM ALLOWED STORES	MAXIMUM ALLOWED STORES	
MAXIMUM ALLOWED AREA	MAXIMUM ALLOWED AREA	
MAX AREA WITH FRONTAGE INCREASE	MAX AREA WITH FRONTAGE INCREASE	
MARGED USE SEPARATIONS	MARGED USE SEPARATIONS	
EXTERIOR WALL OPENING LIMITS	EXTERIOR WALL OPENING LIMITS	
FIRE PROTECTIVE SYSTEMS		
AUTO FIRE SUPPRESSION	NO PER 603.2.2	
FIRE ALARM SYSTEM	YES PER 607.1	
EXTERIOR WALLS	RATING (HOURS)	CODE REFERENCE
NO-LOAD BEARING WALLS	0 HOURS	TABLE 601
LOAD BEARING WALLS	0 HOURS	TABLE 601
PRISMATIC STRUCTURAL FRAME	0 HOURS	TABLE 601
INTERIOR WALLS	RATING (HOURS)	CODE REFERENCE
EXIT CORRIDORS	0 HOURS	TABLE 1002.1
SHAFTS/HVESTAYS	1 HOURS	713.4
LOAD BEARING WALLS	0 HOURS	TABLE 601
ROOF CONSTRUCTION	6 HOURS/CLASS I-V	TABLE 607
PLUMBING FIXTURES		
OCCUPANCY	371 TOTAL, OCCUPANTS	WITH 4116
REQUIRED		
WATER CLOSET/URINALS	4	
LAVATORIES	4	
SINKING SINKS	2	
DRINKING FOUNTAINS	1	
PHOTOGRAPH		

SYMBOL LEGEND

[illegible]

Dispersing Area

PaZ



1 FIRST FLOOR CODE PLAN

27/5/20

Pioneer

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

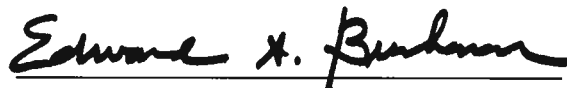
Ace's Range LLC
is a
Limited Liability Company

formed or qualified under the laws of Wyoming did on **April 23, 2021**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2021-000999628**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 28th day of January, 2022 at 11:35 AM. This certificate is assigned ID Number 049542329.




Secretary of State

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